

		Plaintiff shall give notice of the ruling.
3.	2025-1489617 Masaoka vs. ALHV, LLC	The unopposed motion of Plaintiff Mitsuko Masaoka, through her successor in interest, Arther Masaoka, to set aside the dismissal entered on May 27, 2026, is granted. Code Civ. Proc. § 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” Code Civ. Proc. § 473(b) provides for two types of relief. (<i>Leader v. Health Industries of Am., Inc.</i> (2001) 89 Cal. App. 4th 603, 615.) A court may grant discretionary relief upon the moving party’s showing of mistake, inadvertence, surprise or excusable neglect. (<i>Id.</i> at 615-616.) A court must grant mandatory relief upon a showing by an attorney declaration of mistake, inadvertence, surprise or neglect. (<i>Id.</i> at 616.) Arther Masaoka declares that he “cannot remember if I remembered the 5-27-2026 OSC hearing or not and if I attempted to make a virtual appearance on 5-27-2026 as my short term memory and my medications makes [sic] it difficult to remember short-term events.” (Masaoka Decl., ¶ 8.) Plaintiff additionally submitted a declaration from his former conservator, Ruby Hunter, who states that due to her own health issues, she frequently failed to calendar events for Masaoka in this action. (Hunter Decl., ¶¶ 2-3.) Mr. Masaoka also submits a letter from his doctor, O. M. Vesal, M.D., at Irvine Urgent Care. (Ex. B.) This letter states that “Due to the nature of his medical conditions and treatment regimen, he may have difficulty with calendaring obligations, attending scheduled proceedings, and appearing at court hearings at certain times.” (<i>Id.</i>) There is no opposition to this motion. Plaintiff moved promptly, filing it two weeks after the dismissal. Therefore, the Court grants the motion. Mr. Masaoka is reminded that he remains responsible for complying with applicable procedural rules, court orders, and hearing dates. Any future request for relief will be evaluated on its own facts under the applicable legal standards. Self-represented litigants are subject to the same rules as everyone else and are not to be treated any more leniently than represented parties. (See <i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984–985 (“self-representation is not a ground for exceptionally lenient treatment....the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation”); <i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 (self-represented litigants are

		entitled to same treatment as represented parties); <i>Lawrence v. Superior Court</i> (1988) 206 Cal.App.3d 611, 619 (“all litigants should be held to a generally applicable procedural rule, whether or not they are aware of it”).) A Case Management Conference is scheduled for October 22, 2026, in Department N18 at 9:00AM. The clerk will give notice.
4.	2024-1444220 Windisch vs. General Motors, LLC	<u>MOTION FOR JUDGMENT ON THE PLEADINGS</u> Defendant General Motors, LLC’s motion for judgment on the pleadings with respect to Plaintiffs’ fifth cause of action for fraudulent inducement by concealment in the Second Amended Complaint (“2AC”) is granted without leave to amend, subject to the discussion below concerning leave to amend.. A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (<i>Stoops v. Abbassi</i> (2002) 100 Cal. App. 4th 644, 650; Code Civ. Proc. § 438(c)(1)(B)(ii).) As with a demurrer, the grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (Code Civ. Proc. § 438(d).) Extrinsic matters may not be considered; the pleading under attack must be accepted as true. (<i>Id.</i>) Defendant argues that the fraud cause of action is barred by the three-year statute of limitations in Code Civ. Proc., § 338(d). Plaintiffs allege in the 2AC that they purchased the vehicle on March 28, 2015. (2AC, ¶ 6.) They claim that they “discovered Defendant’s wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM’s unsuccessful attempts to repair them.” (2AC, ¶ 19.) Additionally, Plaintiffs state that the “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period....” (2AC, ¶ 25.) The express warranty period was a maximum of five years. (2AC, ¶ 10, Ex. A [express warranty terms].) Five years from March 28, 2015, was March 28, 2020. Even if the last defect within the warranty period manifested itself on March 28, 2020, giving rise to a suspicion of wrongdoing, three years from that date was March 28, 2023. (See <i>Cypress Semiconductor Corp. v. Superior Court</i> (2008) 163 Cal.App.4th 575, 585-586 [“plaintiff has reason to discover a